

**ORDER SHEET
IN THE LAHORE HIGH COURT
LAHORE.
JUDICIAL DEPARTMENT**

Crl.Misc.No.13306-B-2019

Ahmed Saqib

Versus

State etc

S.No of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary.
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10.04.2019

Mr. Azeem Talib Chatha, Advocate for the petitioner.
Mr.Tariq Javid,District Public Prosecutor with Abdullah ASI.
Complainant in person.

Through this petition the petitioner Ahmed Saqib seeks post arrest bail in case FIR No.376 dated 23.6.2018 registered under sections 380,457,411 PPC at Police Station Chak Jhumra,District Faisalabad.

2. Safdar Ali son of Abdul Majeed Custom Inspector, Dry Port Faisalabad put the machinery of law in motion while alleging that on 21.6.2018 at about 11;00 hours , he found that 1661 mobile phones were stolen from Warehouse, value of the mobile phone is mentioned as Rs.11,741,999/-. He also claimed that CCTV footage is also available. Thereafter on 4.10.2018 the accused/petitioner along with others was nominated in the crime report through supplementary statement dated 4.10.2018 with the allegations that they have committed the theft of mobile phones of Warehouse.

3. Heard. Record perused.

4. After hearing the learned counsel for the parties and perusing the record, it transpires that petitioner/accused is not named in the FIR with specific role rather it was lodged against unknown culprits.; The petitioner was nominated in the instant crime report along with 6 other persons by the complainant by making supplementary statement on 4.10.2018 without disclosing any source of information and that too after lapse of about four months of the occurrence. Even otherwise, the offence allegedly took place on 18.6.2018 and the matter was reported to the police on 23.6.2018 at about 5:40 p.m. with the delay of 5 days. The explanation of which has not been advanced by the complainant while lodging the FIR. Soon after the registration of FIR CCTV footage was handed over to the Investigating Officer, who also lifted finger prints from the place of occurrence and sent the same to the NADRA Headquarter Islamabad, wherein it is reported that finger prints as well as photographs duly prepared from CCTV footage were not found matched in the data base of NADRA which means that the report submitted by the NADRA is negative in nature and the photographs are not identifiable. When this situation was confronted to the Investigating Officer present in court, he states that the present petitioner and others were nominated by the complainant while recognizing them in the CCTV footage but conceded that no forensic or any laboratory report is available in this regard. The petitioner had been arrested in the instant case on 19.10.2018 and during the course of investigation 15 mobile phones and amount of crime proceed were allegedly got recovered from his possession but the fact remains that recognition of the present petitioner alongwith others in CCTV footage is a big question mark on the veracity of stance of the complainant and

specifically when negative report submitted by the NADRA Headquarter. Even otherwise, investigation has already been completed and further incarceration of the petitioner would not serve any beneficial purpose for the prosecution.

5. For what has been discussed above, there exist sufficient reasons to believe that the case of the present petitioner is called for further probe into his guilt within the scope of section 497(2) Cr.P.C. Resultantly, this petition is allowed and petitioner is admitted to post arrest bail subject to his furnishing bail bonds in the sum of Rs.5,00,000/- (rupees five lac) with one surety in the like amount to the satisfaction of the learned trial court.

7. 0. 0. 0. 0.
(Muhammad Waheed Khan)
Judge.

APPROVED FOR REPORTING.

7. 0. 0. 0. 0.
Judge.

Raza*

2/12/19